

Citizens Nonpartisan Ballot Survey

Sources and Background References

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File: docs/wy-citizens-nonpartisan-ballot-references.pdf

Purpose

This reference PDF supports the Citizens Nonpartisan Ballot survey. It explains the current Wyoming primary structure, defines the survey idea in plain language, and provides source links for voters who want to review the background themselves.

Reading these references is optional and is not required to answer the survey. The survey is intended to measure public input, not persuade voters toward a preferred answer.

Plain-language summary

Wyoming currently uses separate party primary ballots for major political parties. Wyoming law also provides a separate nonpartisan primary ballot, but that ballot is not an all-candidate ballot for every partisan office.

The Citizens Nonpartisan Ballot is a proposed civic model, not current Wyoming law. The idea being surveyed is simple: keep the existing party primary ballots and add one optional citizens ballot where all candidates for each office are listed together. A voter would choose one ballot and one candidate per office.

The survey also asks whether one candidate from each ballot should advance to the general election for each office. That advancement rule would require legal review and legislative action before it could become an official election system.

Current Wyoming primary structure

- Major political parties have separate primary ballots, held at the same time and polling places and conducted by the same election officials.
- A voter requesting a major party ballot must follow party affiliation rules before receiving that party ballot.
- A voter may vote only the nonpartisan ballot without declaring party affiliation.
- For partisan offices, the candidate or candidates receiving the largest number of votes on each party ballot are nominated for the next general election ballot.
- Independent candidates use a petition process rather than a party primary ballot process.

What the survey idea would test

- Whether voters support adding an optional third ballot, in addition to existing party primary ballots.
- Whether that optional ballot should list all candidates for each office together.
- Whether a voter should choose one ballot and one candidate per office.
- Whether one candidate from each ballot should advance to the general election for each office.
- Whether this concept should be studied further before any official law change is proposed.

Important distinction

This proposal is not the same as a standard top-two primary. California and Washington use systems where all candidates appear together and the two highest vote-getters advance. The Citizens Nonpartisan Ballot concept described in this survey keeps existing party ballots and adds an optional citizens ballot. Because that design is different, it should be evaluated on its own terms.

Neutral definitions used by the survey

Term	Meaning
Party primary ballot	A ballot tied to a political party nomination process.
Nonpartisan ballot under current Wyoming law	A separate ballot used for nonpartisan offices. It is not the same as an all-candidate ballot for every partisan office.
Citizens Nonpartisan Ballot	A proposed optional ballot listing all candidates for each office together, regardless of party label.
One voter, one ballot	A voter would choose one ballot for the primary process.
One choice per office	A voter would select one candidate for each office listed on the chosen ballot.
Advance to the general election	A candidate moves from the primary stage to appear on the general election ballot, according to the rules adopted by law.

Source list

These links are provided for voters who want to review the source material. Reading them is optional and is not required to answer the survey. The questions are intended to measure opinion, not persuade.

1. Wyoming Secretary of State - Election Center

Official state election hub. Provides the 2026 Primary Election date, General Election date, candidate rosters, election code links, voter registration resources, and related election materials.

<https://sos.wyo.gov/Elections/Default.aspx>

2. Wyoming Statutes, W.S. 22-5-202 - Major political party participation; separate ballots; same time

Current law states that major political parties participate in the primary election and each has a separate party ballot.

<https://law.justia.com/codes/wyoming/title-22/chapter-5/article-2/section-22-5-202/>

3. Wyoming Statutes, W.S. 22-5-203 - Nonpartisan judicial offices; separate ballot; same time

Current law also provides for a separate nonpartisan primary ballot held at the same time and polling places as the partisan primary.

<https://law.justia.com/codes/wyoming/title-22/chapter-5/article-2/section-22-5-203/>

4. Wyoming Statutes, W.S. 22-5-212 - When declaration of party affiliation required

Current law connects receiving a major party ballot with party affiliation rules, while allowing an elector to vote only the nonpartisan ballot without declaring party affiliation.

<https://law.justia.com/codes/wyoming/title-22/chapter-5/article-2/section-22-5-212/>

5. Wyoming Statutes, W.S. 22-5-214 - Declaration or change in party affiliation

Current law sets the timing and method for declaring or changing party affiliation for a primary election.

<https://law.justia.com/codes/wyoming/title-22/chapter-5/article-2/section-22-5-214/>

6. Wyoming Statutes, W.S. 22-5-215 - Nomination of partisan candidates and write-in candidates

Current law states that the candidate or candidates receiving the largest number of votes on each party ballot are nominated for the general election ballot.

<https://law.justia.com/codes/wyoming/title-22/chapter-5/article-2/section-22-5-215/>

7. Wyoming Secretary of State - Candidate Information

Official state page explaining that independent candidates apply through the petition process and linking candidate resources.

<https://sos.wyo.gov/elections/candidateinformation.aspx>

8. National Conference of State Legislatures - State Primary Election Types

A nonpartisan policy reference explaining how primary systems vary across states, including closed, open, top-two, top-four, and all-comers models.

<https://www.ncsl.org/elections-and-campaigns/state-primary-election-types>

9. California Secretary of State - Primary Elections in California

Official example of a top-two model where all candidates for voter-nominated offices appear on one ballot and the top two vote-getters advance regardless of party preference.

<https://www.sos.ca.gov/elections/primary-elections-california>

10. Washington Secretary of State - Top Two Primary FAQs for Voters

Official example of a top-two model where voters may vote for any candidate and the two candidates with the most votes advance to the general election.

<https://www.sos.wa.gov/elections/voters/helpful-information/top-two-primary-faqs-voters>

Limits of this reference document

- This document summarizes public sources for voter education and survey context.
- It does not provide legal advice.
- It does not claim that the proposed Citizens Nonpartisan Ballot is current Wyoming law.
- Any official change to Wyoming primary ballots or candidate advancement rules would require legal review and action through the lawful legislative or ballot-measure process.
- Voters should rely on county clerks and the Wyoming Secretary of State for official election instructions.

Suggested survey wording supported by these references

Should Wyoming offer voters a third optional citizens nonpartisan ballot, in addition to existing party primary ballots?

Should one candidate from each ballot advance to the general election for each office?